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Case Number: 26STCV13609 Hearing Date: July 27, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

SWEDART PRODUCTIONS D/B/A AF CREATIVE,

Plaintiff,

vs.

LIFETECH RESOURCES LLC,

Defendant.

Case No.:

26STCV13609

Hearing Date:

July 27, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT

AND CROSS-COMPLAINANT LIFETECH RESOURCES LLC'S MOTION TO SEAL (1) PORTIONS OF COMPLAINT AND FIRST AMENDED COMPLAINT AND EXHIBITS; AND (2) PORTIONS OF CROSS-COMPLAINT;

DEFENDANT

AND CROSS-COMPLAINANT LIFETECH RESOURCES LLC'S MOTION TO FILE DEMURRER AND SUPPORTING EXHIBITS UNDER SEAL

AND RELATED CROSS-ACTION

Background

On April 28, 2026,

Plaintiff SwedArt Productions d/b/a AF Creative ("SwedArt") filed this action against Defendant Lifetech Resources LLC ("Lifetech"). On April 30, 2026, SwedArt filed a first amended complaint ("FAC") alleging ten causes of action for (1) breach of contract (master services agreement and executed statements of work), (2) breach of contract (implied-in-fact) (SOW 6 and related authorized scopes), (3) breach of the implied covenant of good faith and fair dealing, (4) account stated (common count), (5) open book account (common count; CCP § 337a), (6) quantum meruit/unjust enrichment (quasi-contract/restitution), (7) promissory estoppel, (8) intentional misrepresentation (promissory fraud), (9) negligent misrepresentation, and (10) unlawful/unfair business practices (Bus. & Prof. Code § 17200).

On May 21, 2026, Lifetech filed a

cross-complaint against SwedArt, alleging eleven causes of action for (1) breach of contract, (2) breach of the covenant of good faith and fair dealing, (3) promissory estoppel, (4) misappropriation of trade secrets (Cal. Civ. Code § 3426 et seq.), (5) misappropriation of trade secrets (18 U.S.C. § 1836 – DTSA), (6) trademark infringement under the Lanham Act, (15 U.S.C. § 1114(1)), (7) false designation of origin and unfair competition under the Lanham Act (15 U.S.C. § 1125(a)(1)(A)), (8) false advertising under the Lanham Act (15 U.S.C. § 1125(a)(1)(B)), (9) unfair business practices (Cal. Bus. Prof. Code § 17200 et seq.), (10) accounting, and (11) declaratory

relief (Cal. Code Civ. Proc. § 1060).

Lifetech now moves to seal

portions of SwedArt's complaint, SwedArt's FAC, Lifetech's cross-complaint, and portions of the motion and supporting declarations. Lifetech also moves to seal portions of its demurrer. SwedArt did not file an opposition. Lifetech filed a "Notice of Non-Receipt of Opposition" for both motions.

Legal Standard

Generally, "[u]nless confidentiality is required by law, court records are presumed to be open." (Cal. Rules of Court, rule 2.550(c).) If the presumption of access applies, "[t]he court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest." (Cal. Rules of Court, rule 2.550(d).)

Discussion

Lifetech seeks an order "sealing (1) portions of Plaintiff/Cross-Defendant Swedart Productions d/b/a AF Creative's ('Plaintiff' or 'AF Creative') Complaint (filed April 28, 2026) and the First Amended Complaint ('FAC')(filed April 30, 2026) that contain confidential, trade secret, and proprietary business information and sealing Exhibits 1 through 5 to the FAC; and (2) portions of Lifetech's Cross-Complaint containing confidential, trade secret, and proprietary business information; and (3) directing that portions of the this Motion and related papers that quote or describe specific provisions from the parties' Master Services Agreement ('MSA') and Statements of Work ('SOW') and other confidential and trade secret information be filed under seal." (Notice of Compl. Mot., 2:6-14.) Lifetech also seeks "portions of Lifetech's Notice of Demurrer and Demurrer to Plaintiff Swedart Products d/b/a AF Creative's First Amended Complaint ('Demurrer') and portions of Exhibits A and B attached to the Declaration of Amanda R. Washton in support of Lifetech's Demurrer." (Notice of Dem. Mot., 2:6-9.)

Lifetech seeks to seal the foregoing because "the exhibits at issue,

consisting of the parties' MSA and associated SOWs, contain confidential, trade secret, and proprietary business information whose continued public availability on the court docket causes immediate and ongoing irreparable commercial harm to Lifetech; that the body of both the original Complaint and the FAC recite specific confidential information derived from those agreements; that Lifetech's Cross-Complaint necessarily references these same confidential terms; that Lifetech's own supporting papers (the Motion and Declarations in support thereof) necessarily quote or describe specific MSA provisions and confidential terms in order to establish the grounds for sealing; and that the MSA contains an express mutual prohibition against disclosing or publicizing the existence or terms of the Agreement without the other party's prior written consent, which AF Creative violated by filing the exhibits without Lifetech's authorization." (Notice of Compl. Mot., 4:13-23.) Similarly, the motion to seal the demurrer "is made on the grounds that portions of the Demurrer and Exhibits A and B quote or describe specific provisions from the parties' [MSA] and [SOW] which have been deemed confidential pursuant to the agreements themselves. Independent of the contractual obligation, the Demurrer and Exhibits A and B contain confidential and proprietary information germane to Lifetech's competitive business positions, including pricing data, bargained for promises that would not otherwise be public knowledge, and sensitive commercial negotiations." (Notice of Dem. Mot., 2:15-21.)

Lifetech contends that it has an overriding interest in sealing the requested information, which "overcomes the right of public access" and "supports sealing the record." (Cal. Rules of Court, rule 2.550(d).) Lifetech cites NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1222, fn. 46, where the court stated that "protection of trade secrets, protection of information within the attorney-client privilege, and enforcement of binding contractual obligations not to disclose" constitute overriding interests. (See also Universal City Studios, Inc. v. Superior Court (2003) 110 Cal.App.4th 1273, 1283 (Universal) ["contractual obligation not to disclose can constitute an overriding interest within the meaning of rule 243.1(d)."].) Lifetech also cites to Civil Code section 3426.5, which states that "a court shall preserve the secrecy of an alleged trade secret by reasonable means, which may include granting protective orders in connection with discovery proceedings, holding in-camera hearings, sealing the records of the action, and ordering any person involved in the litigation not to disclose an alleged trade secret without prior court approval." Lifetech thus asserts that "[t]his statutory mandate independently supports sealing

here, as the Subject Documents, all contain information that Lifetech has identified as trade secrets in its Cross-Complaint.” (Compl. Mot., 9:19-21.)

Lifetech similarly contends that “[t]he MSA and SOWs between Lifetech and AF Creative contain confidentiality provisions deeming the terms of the agreements confidential. The parties’ contractual confidentiality obligations reflect a mutual understanding that the terms of their commercial relationship—including pricing, rates, and scope of services—are proprietary and not intended for public disclosure. The portions of the Demurrer, and Exhibits proposed to be sealed directly quote or describe specific MSA and SOW provisions, pricing terms, and negotiation details. These are the very categories of information the parties agreed to keep confidential, and their disclosure would undermine the purpose of the contractual confidentiality obligations and would reveal Lifetech’s competitive business positions, pricing strategies, and the specific terms on which it engages vendors for marketing and creative services, placing Lifetech at a competitive disadvantage in future negotiations.” (Dem. Mot., 6:12-22.) The Court finds that not only did Lifetech identify a confidentiality provision not to share the terms of the agreement, but Lifetech explains that it seeks to seal confidential business information. Accordingly, Lifetech’s desire to seal the requested information represents an overriding interest that overcomes the right of public access.

Next, Lifetech asserts that it will be prejudiced if the record is not sealed. Confidential information relating to a business’ practices justifies sealing the record when “public revelation of the[] matters would interfere with its ability to effectively compete in the marketplace both here in this country and overseas.” (Universal, supra, 110 Cal.App.4th at p. 1286.) Lifetech asserts that “[b]ecause the Subject Documents contain trade secret information that a competitor could use to replicate Lifetech’s marketing strategies, preemptively counteract its product launches, and exploit its confidential retailer and distributor relationships, sealing is warranted.” (Compl., Mot., 9:28-10:3.) Lifetech further asserts that SwedArt’s “filing of the MSA, SOWs, and confidential financial terms on the public record without Lifetech’s prior written consent” is an issue. (Compl., Mot., 10:8-10.) Lastly, Lifetech contends that because “the MSA and SOWs contain confidential business information and trade secrets, including proprietary projected revenue figures, quarterly marketing budget allocations, revenue-based pricing structures, product launch and campaign timing, and detailed brand and marketing strategies, all of which derive independent economic value from not being generally known.” (Compl., Mot., 10:11-14.) Similarly in the motion to seal the

demurrer, Lifetech asserts that “[i]f the confidential pricing data, contractual terms, and negotiation details are publicly disclosed through the court file, the confidentiality of this information will be irreversibly destroyed. Competitors, potential vendors, and other third parties would have access to Lifetech’s proprietary commercial information, which could be used to Lifetech’s competitive disadvantage. This harm cannot be undone once the information is made public.” (Dem. Mot., 7:8-13.)

As the court in *Universal*, supra, 110

Cal.App.4th at p. 1283 noted, even if a party demonstrates that there is “a binding contractual agreement not to disclose,” the party must still show that there is “a substantial probability that it will be prejudiced absent closure or sealing.” The Court finds that Lifetech has adequately met this standard by describing the private, trade-secret nature of these documents and demonstrating the harm Lifetech would face were the documents to enter the public eye.

Lifetech lastly asserts that its request is “narrowly tailored because Lifetech seeks only to seal and/or redact the portions of [Lifetech’s Demurrer,] Lifetech’s Cross-Complaint, Plaintiff’s Complaint and FAC, and the exhibits thereto that quote, paraphrase, or describe the parties’ confidential agreements or otherwise contain confidential, trade secret, and proprietary business information.” (Compl. Mot., 10:17-20; see also Dem. Mot., 7:15-17.) Lifetech contends that it “does not seek to seal the documents in their entirety; rather, it has prepared proposed redacted versions of both the original Complaint and the FAC that leave the vast majority of each pleading publicly accessible. Similarly, the Cross-Complaint redactions target only the specific paragraphs and lines that disclose confidential contract terms, pricing information, and proprietary business strategies. The descriptions within Lifetech’s Cross-Complaint are necessary to satisfy the state of California’s trade secret claim pleading standards.” (Compl. Mot., 10:21-26.) Lifetech also explains it “carefully identified only those specific passages that quote, describe, or reference confidential MSA and SOW provisions, pricing data, and commercial negotiations [in the Demurrer and Exhibits]. The vast majority of the Demurrer and Exhibits remain unredacted, ensuring that the substance of the legal arguments remain publicly accessible.” (Dem. Mot., 7:18-22.) Lastly, Lifetech contends that “[s]ealing the narrowly identified portions is the least restrictive means of protecting the confidential information while preserving public access to the remainder of the filings.” (Dem. Mot., 7:27-8:1.) The Court reviewed the redacted and unredacted versions of the documents and agrees that Lifetech narrowly tailored its redactions and there

are no less restrictive means to conceal the trade secret information. Accordingly, the Court finds that Lifetech complied with the final two elements.

Based on the foregoing, and in light of SwedArt not opposing the request, the Court finds that Lifetech carried its burden to demonstrate the necessity of sealing the requested documents, exhibits, and portions of documents by satisfying all five enumerated factors in California Rules of Court, rule 2.550(d).

Conclusion

Based on the foregoing, Lifetech's motions to seal are GRANTED. The Clerk is ordered to seal the following documents or, where indicated, the designated portions thereof:

1. The designated portions of SwedArt's original complaint (filed April 28, 2026) and the FAC (filed April 30, 2026), as shown in Exhibits A and B, respectively, attached to the Declaration of Amanda R. Washton.
2. Exhibits 1 through 5 to SwedArt's FAC.
3. The designated portions of Lifetech's cross-complaint, filed on May 21, 2026.
4. The designated portions of the motion and declarations of Amanda R. Washton and Janet Carieri in support of Lifetech's motion to seal the complaint, FAC, and cross-complaint.
5. The designated portions of Lifetech's demurrer (including Exhibits A and B), as shown in Exhibit 1, attached to the declaration of Amanda R. Washton in support of Lifetech's motion to seal the demurrer.

Pursuant to California Rules of Court, rule 2.551(e), the Court directs the Clerk to file this Order, "maintain the record ordered sealed in a secure manner, and clearly identify the record as sealed by court order on a specified date." The Court further orders that no persons other than the Court and Court staff, as necessary, are authorized to inspect the sealed records.

SwedArt is ordered to file
publicly available redacted versions of the complaint and the FAC and Exhibits
1 through 5 thereto, as shown in Exhibits A and B, attached to the Declaration
of Amanda R. Washton within five days of this Order.

Pursuant to California Rules of Court, rule 2.551(e)(4), this
Order "prohibits the parties from disclosing the contents of any materials that
have been sealed in anything that is subsequently publicly filed."

Lifetech is
ordered to provide notice of this Order.

DATED: July 27, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court